

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                      |                                                |                           |                                                                                                                                                                                                                                             |
|----------------------------------------------------------------------|------------------------------------------------|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Rachel Adler                                        | Team:<br>Squad #09                             | CCRB Case #:<br>202201517 | <input checked="" type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 02/12/2022 11:18 AM, NA,<br>__/__/____ | Location of Incident:<br>§ 87(2)(b) [REDACTED] | 18 Mo. SOL<br>8/12/2023   | Precinct:<br>103                                                                                                                                                                                                                            |
| Date/Time CV Reported<br>Sat, 02/12/2022 1:53 PM                     | CV Reported At:<br>IAB                         | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 03/10/2022 6:55 PM                                                                                                                                                                                       |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| [REDACTED]         | [REDACTED] | [REDACTED]   |

| Witness(es) | Home Address |
|-------------|--------------|
| [REDACTED]  | [REDACTED]   |

| Subject Officer(s)    | Shield | TaxID  | Command |
|-----------------------|--------|--------|---------|
| 1. PO Matthew Marrero | 15777  | 957813 | 103 PCT |
| 2. PO Roger Mock      | 24574  | 969991 | 103 PCT |
| 3. An officer         |        |        |         |
| 4. PO Anthony Pala    | 17692  | 964200 | 103 PCT |

| Witness Officer(s)            | Shield No | Tax No | Cmd Name |
|-------------------------------|-----------|--------|----------|
| 1. PO Karina Lucero           | 27425     | 965292 | 103 PCT  |
| 2. PO Ian Woodard             | 24831     | 962175 | 103 PCT  |
| 3. PO Tyshaun Jordan          | 11078     | 972027 | 103 PCT  |
| 4. PO Marissa Doyen           | 21421     | 967853 | 103 PCT  |
| 5. PO Wushen Zhang            | 13192     | 961475 | 103 PCT  |
| 6. PO Ivor Alexander          | 19037     | 958230 | 103 PCT  |
| 7. PO Franklin Taveras        | 10653     | 966881 | 103 PCT  |
| 8. DTS Fabio Gonzalez         | 06453     | 950516 | 103 PCT  |
| 9. PO Lisa Steele             | 15899     | 962119 | 103 PCT  |
| 10. PO Blake Ficken           | 10672     | 956645 | 107 PCT  |
| 11. PO Gregory Mucci          | 22356     | 971158 | 107 PCT  |
| 12. PO Harrison Rieber        | 11540     | 964725 | 103 PCT  |
| 13. PO Joseph Gajewski        | 03972     | 964522 | 103 PCT  |
| 14. PO Scott Mateyaschuk      | 22446     | 969952 | 103 PCT  |
| 15. PO Steven Cristino        | 26621     | 971023 | 103 PCT  |
| 16. PO Eric Link              | 04713     | 960810 | 107 PCT  |
| 17. PO Aphisith Usdonvudhikai | 14885     | 968168 | 103 PCT  |
| 18. PO Andrico Caballero      | 25969     | 971000 | 103 PCT  |
| 19. PO Niladri Das            | 07204     | 961510 | 103 PCT  |
| 20. PO Alex Quezada           | 01643     | 970787 | 103 PCT  |
| 21. PO Kevin Kelland          | 22912     | 965235 | 103 PCT  |
| 22. PO Robert Hallock         | 05173     | 964042 | 103 PCT  |
| 23. PO Brendan Greaney        | 11283     | 970565 | 103 PCT  |
| 24. PO Justin Vera            | 14889     | 968175 | 103 PCT  |

| <b>Witness Officer(s)</b> | <b>Shield No</b> | <b>Tax No</b> | <b>Cmd Name</b> |
|---------------------------|------------------|---------------|-----------------|
| 25. PO Kyung Kim          | 11728            | 965772        | 103 PCT         |
| 26. PO Gustavo Martinez   | 08370            | 961922        | 103 PCT         |
| 27. SGT Crystal Collins   | 00912            | 948797        | 103 PCT         |
| 28. DTS Anthony Rodriguez | 07464            | 947414        | 103 PCT         |
| 29. PO Asahafik Choudhery | 02830            | 962979        | 103 DET         |

| <b>Officer(s)</b>      | <b>Allegation</b>                                                                                         | <b>Inv. Div. Recommendation</b> |
|------------------------|-----------------------------------------------------------------------------------------------------------|---------------------------------|
| A . An officer         | Abuse: On an unknown date, an officer threatened to arrest § 87(2)(b)                                     | A . Within NYPD Guidelines      |
| B . An officer         | Abuse: On an unknown date, an officer threatened to arrest § 87(2)(b)                                     | B . Within NYPD Guidelines      |
| C . PO Matthew Marrero | Abuse: On February 12, 2022, Police Officer Matthew Marrero entered § 87(2)(b) in Queens.                 | C . Within NYPD Guidelines      |
| D . PO Roger Mock      | Abuse: On February 12, 2022, Police Officer Roger Mock entered § 87(2)(b) in Queens.                      | D . Within NYPD Guidelines      |
| E . PO Matthew Marrero | Force: On February 12, 2022, Police Officer Matthew Marrero used physical force against § 87(2)(b)        | E . Unfounded                   |
| F . PO Matthew Marrero | Force: On February 12, 2022, Police Officer Matthew Marrero used physical force against § 87(2)(b)        | F . Within NYPD Guidelines      |
| G . An officer         | Force: On February 12, 2022, an officer used physical force against § 87(2)(b)                            | G . Unfounded                   |
| H . An officer         | Force: On February 12, 2022, an officer restricted § 87(2)(b) breathing.                                  | H . Unfounded                   |
| I . PO Matthew Marrero | Discourtesy: On February 12, 2022, Police Officer Matthew Marrero spoke discourteously to § 87(2)(b)      | I . Within NYPD Guidelines      |
| J . PO Roger Mock      | Force: On February 12, 2022, Police Officer Roger Mock used a non-lethal restraining device on § 87(2)(b) | J . Within NYPD Guidelines      |
| K . PO Roger Mock      | Force: On February 12, 2022, Police Officer Roger Mock used a non-lethal restraining device on § 87(2)(b) | K . Within NYPD Guidelines      |
| L . An officer         | Force: On February 12, 2022, an officer used physical force against § 87(2)(b)                            | L . Officer(s) Unidentified     |
| M . An officer         | Force: On February 12, 2022, an officer restricted § 87(2)(b) breathing.                                  | M . Officer(s) Unidentified     |
| N . An officer         | Force: On February 12, 2022, an officer used a non-lethal restraining device on § 87(2)(b)                | N . Unfounded                   |
| O . PO Anthony Pala    | Discourtesy: On February 12, 2022, Police Officer Anthony Pala was discourteous to § 87(2)(b)             | O . Substantiated               |
| P . PO Anthony Pala    | Discourtesy: On February 12, 2022, Police Officer Anthony Pala spoke discourteously to § 87(2)(b)         | P . Substantiated               |
| § 87(2)(g), § 87(4-b)  |                                                                                                           |                                 |

## Case Summary

On February 12, 2022, § 87(2)(b) filed this complaint over the phone with IAB on his own behalf. The complaint was received by the CCRB on March 10, 2022, under log number § 87(2)(b).

On two unknown dates in December 2021 or January 2022, at unknown times, an officer knocked on the front door of § 87(2)(b) in Queens, threatened to arrest § 87(2)(b) (Allegations A and B, Abuse of Authority: Within NYPD Guidelines), and left without entering the apartment.

On February 12, 2022, at 11:18 A.M., PO Matthew Marrero and PO Roger Mock, both of the 103<sup>rd</sup> Precinct, arrived at the same apartment, § 87(2)(b) in Queens, in response to a 911 call made on behalf of § 87(2)(b) girlfriend who resided at the apartment. PO Marrero and PO Mock entered the apartment (**Allegations C and D, Abuse of Authority: Within NYPD Guidelines**). Upon entering, PO Marrero allegedly pushed § 87(2)(b) (**Allegation E, Force: Unfounded**) and pulled his right arm, allegedly fracturing it (**Allegation F, Force: Within NYPD Guidelines**). An officer allegedly pushed his knee into § 87(2)(b) back, restricting his ability to breathe (**Allegations G and H, Force: Unfounded**). While PO Mock was threatening to tase § 87(2)(b) PO Marrero stated, “Sir, I’m telling you for the last fucking time” (**Allegation I, Discourtesy: Within NYPD Guidelines**). PO Mock then tased § 87(2)(b) twice (**Allegations J and K, Force: Within NYPD Guidelines**). An officer allegedly sat on § 87(2)(b) back, restricting his breathing (**Allegations L and M, Force: Officer Unidentified**). An officer then tased § 87(2)(b) a third time (**Allegation N, Force: Unfounded**). PO Anthony Pala of the 103<sup>rd</sup> Precinct then arrived at the apartment while wearing a Devils Island-themed patch and a patch that read “Riots 2020” on his uniform (**Allegation O, Discourtesy: Substantiated**). PO Pala told § 87(2)(b) “Don’t fucking face me again,” (**Allegation P, Discourtesy: Substantiated**). § 87(2)(g), § 87(4-b)

**[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]**

The investigation obtained body-worn camera (BWC) videos for the February 12, 2022 incident date from PO Marrero, PO Mock, and PO Pala (**03-10 Board Review**), as well as PO Ivor Alexander, PO Andrico Caballero, PO Steven Cristino, PO Niladri Das, PO Joseph Gajewski, Det. Fabio Gonzalez, PO Tyshaun Jordan, PO Karina Lucero, PO Scott Mateyaschuk, PO Alex Quezada, PO Harrison Rieber, PO Lisa Steele, PO Franklin Taveras, PO Aphisith Usdonvudhikai, PO Ian Woodard, and PO Wushen Zhang, all assigned to the 103<sup>rd</sup> Precinct (**11-25 Board Review**), and PO Blake Ficken, PO Eric Link, and PO Gregory Mucci, all assigned to the 107<sup>th</sup> Precinct (**26-27 Board Review**). The investigation also obtained a cell phone video from § 87(2)(b) (**28 Board Review**).

## **Findings and Recommendations**

**Allegation (A) Abuse of Authority:** On an unknown date, an officer threatened to arrest § 87(2)(b)

**Allegation (B) Abuse of Authority:** On an unknown date, an officer threatened to arrest § 87(2)(b)

§ 87(2)(b) testified that on two occasions in either December 2021 or January 2022, an officer knocked on the front door of § 87(2)(b) in Queens, and told § 87(2)(b) “Every time I see you, I’m going to arrest you.” (29 Board Review). § 87(2)(b) did not

open the door and PO1 did not enter the apartment. § 87(2)(b) described PO1 as a 28- or 29-year-old Hispanic male, 6' tall, with an athletic build, low-cut black hair and dark eyes who was wearing a navy blue uniform. In January 2022, § 87(2)(b) neighbor sent him a photograph of a wanted poster with § 87(2)(b) photo on it that stated, "Probable cause for arrest – wanted for strangulation – the 103<sup>rd</sup> Precinct is trying to locate the above-pictured perpetrator who is wanted for strangulation – November 21." The neighbor told § 87(2)(b) that the poster was hanging inside § 87(2)(b) Avenue in Queens. The same officer arrested § 87(2)(b) in January 2022. § 87(2)(b) saw him again on February 12, 2022, outside § 87(2)(b) Avenue in Queens, after he was handcuffed, but did not interact with him on that occasion.

A search of § 87(2)(b) previous arrest reports showed that § 87(2)(b) was arrested § 87(2)(b) under two separate arrest reports, one with PO Asahfik Choudhery of the 103<sup>rd</sup> Precinct Detective Squad as arresting officer and the other as PO Anthony Rodriguez of the 103<sup>rd</sup> Precinct as arresting officer **(30 Board Review)**. § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation was unable to obtain DD5s for the investigation into the November 21, 2021 and December 19, 2021 complaint reports because the cases were sealed **(64 Board Review)**.

§ 87(2)(b)

§ 87(2)(b)

According to PO Choudhery's MOS photo, he is a 6'2" tall, 225-pound, 28-year-old dark-skinned Asian male with black hair and brown eyes **(31 Board Review)**. PO Rodriguez's MOS photo shows that he is a 5'9" tall, 160-pound, 36-year-old Hispanic male with brown hair and brown eyes **(32 Board Review)**.

Both PO Choudhery and PO Rodriguez are partial matches for § 87(2)(b) description of the subject officer, and both were his arresting officer for the January 2022 arrest. Neither officer appears in the video footage or other documentation of the February 12, 2022 incident. As such, it is unclear which of the two officers is the subject officer and so Allegations A and B are being pleaded against an officer.

According to Patrol Guide Procedure 208-01, officers may effect an arrest for a crime, whether committed within their presence or not, when they have reasonable cause to believe that the arrested person committed the crime **(61 Board Review)**. Per *People v. Cotton*, 143 A.D.2d 680, it is "well settled that information provided by an identified citizen, accusing another identified individual of a crime, is sufficient to provide officers with probable cause to arrest," **(62 Board Review)**. The November 2021 complaint report, as well as the two January 2022 arrest reports, show that in December 2021 and January 2022, there were open criminal complaint reports for § 87(2)(b) § 87(2)(b)

§ 87(2)(b) (g)

§ 87(2)(b)

It is therefore recommended that **Allegations A and B** be closed as **within NYPD guidelines**.

**Allegation (C) Abuse of Authority: On February 12, 2022, Police Officer Matthew Marrero entered § 87(2)(b) in Queens.**

**Allegation (D) Abuse of Authority: On February 12, 2022, Police Officer Roger Mock entered § 87(2)(b) in Queens.**

It is undisputed that on February 12, 2022, at approximately 11:18 A.M., PO Marrero and PO Mock arrived at § 87(2)(b) § 87(2)(b) in Queens when both § 87(2)(b) and § 87(2)(b) were inside. § 87(2)(b) opened the front door after the officers knocked. Both officers then entered the apartment.

§ 87(2)(b) testified that when officers arrived, he was not paying attention to whether they asked for permission to enter or if § 87(2)(b) gave them permission to do so (29 Board Review). § 87(2)(b) testified that after officers knocked, she opened the door, and told them they could come inside (33 Board Review).

At 02:45 in PO Mock's first BWC, § 87(2)(b) opens the door to § 87(2)(b) holds it wide open, points her right hand into the apartment, and states, "He's abusing me. I need him to leave now," (07, 36 Board Review). She then turns around and walks into the apartment, leaving the door open. PO Marrero and PO Mock follow her inside.

According to *People v. Brown* 234 A.D.2d 211, "consent to enter a home may be established by conduct, as well as words," (37 Board Review). In the case, an individual's gesture of opening the door to her residence, "leaving it wide open, and the walking away from it could certainly be interpreted by police to consist of tacit approval for them to enter."

BWC video shows that § 87(2)(b) pointed inward into the apartment when referencing the abusive male, § 87(2)(b) and then turned around and walked inside, leaving the door open. § 87(2)(b)

§ 87(2)(b)  
§ 87(2)(b)  
§ 87(2)(b)

It is therefore recommended that Allegations C and D be closed as within NYPD guidelines.

**Allegation (E) Force: On February 12, 2022, Police Officer Matthew Marrero used physical force against § 87(2)(b)**

**Allegation (F) Force: On February 12, 2022, Police Officer Matthew Marrero used physical force against § 87(2)(b)**

**Allegation (G) Force: On February 12, 2022, an officer used physical force against § 87(2)(b)**

**Allegation (H) Force: On February 12, 2022, an officer restricted § 87(2)(b) breathing.**

**Allegation (I) Discourtesy: On February 12, 2022, Police Officer Matthew Marrero spoke discourteously to § 87(2)(b)**

**Allegation (J) Force: On February 12, 2022, Police Officer Roger Mock used a non-lethal restraining device on § 87(2)(b)**

**Allegation (K) Force: On February 12, 2022, Police Officer Roger Mock used a non-lethal restraining device on § 87(2)(b)**

**Allegation (L) Force: On February 12, 2022, an officer used physical force against § 87(2)(b)**

**Allegation (M) Force: On February 12, 2022, an officer restricted § 87(2)(b) breathing.**

**Allegation (N) Force: On February 12, 2022, an officer used a non-lethal restraining device on § 87(2)(b)**

§ 87(2)(b)

§ 87(2)(b) testified that while he was seated on the couch, he stood up, and PO Marrero grabbed his left arm and handcuffed it (29 Board Review). When PO Marrero tried to move § 87(2)(b) left arm behind his back, he stiffened his hands and held them downward to prevent officers from gaining control of them. PO Marrero then pushed § 87(2)(b) forward onto the couch, causing him to fall to the floor on his knees with his torso and head pressed against the seat portion of the couch. § 87(2)(b) left hand was cuffed behind him and his right hand was between his torso and the couch. PO Marrero then pulled § 87(2)(b) right hand, causing his wrist to fracture. One of the officers also pressed his knee into § 87(2)(b) upper back for approximately five seconds, restricting his ability to breathe. § 87(2)(b) pushed his body upward and moved off the couch to the bed at the other end of the room while the officers continued to hold his handcuffed left hand. While § 87(2)(b) was face-down on the bed, PO Mock stated, "I'm going to tase you" and he felt a shock in his lower back. § 87(2)(b) then stood up and moved toward the other side of studio. As he did



so, one of the officers tased him a second time on the right side of his buttocks, causing him to fall onto the couch. After, another 10 officers entered the apartment, and while § 87(2)(b) was still on the couch, an officer sat on § 87(2)(b) upper back, restricting his breathing. An officer then tased him a third time on his right leg, after which § 87(2)(b) put his hands behind his back and said, “Okay, please just take my hands. Just don’t tase me again.” After handcuffing him, officers brought § 87(2)(b) to the hospital. However, hospital staff did not examine his wrist. § 87(2)(b) fractured wrist was never examined by any medical professionals.

§ 87(2)(b) failed to provide a signed HIPAA waiver to the investigation **(29 Board Review)**.

The investigation obtained PO Marrero’s first BWC video **(03, 38 Board Review)**. When officers enter the apartment, at 02:38, § 87(2)(b) is seated on a couch facing the front door. The officers begin to discuss the issue with the occupants, and at 03:45, § 87(2)(b) tells the officers that § 87(2)(b) punched her. PO Marrero then loosely holds § 87(2)(b) right wrist and § 87(2)(b) states that § 87(2)(b) is lying. PO Marrero does not push § 87(2)(b) to the ground as alleged by § 87(2)(b). At 04:05, PO Marrero tells § 87(2)(b) to stand and put his hands behind his back. § 87(2)(b) briefly stands and states, § 87(2)(b) look what they’re about to do to me.” He then sits down, crosses his arms over his lap and states, “I did not touch her. Please don’t do this to me.” § 87(2)(b) then gets up and moves forward toward the open front door and § 87(2)(b) with his arms out to his sides. PO Mock grabs § 87(2)(b) left arm and PO Marrero pulls backward on § 87(2)(b) right arm. PO Marrero’s pull does not appear to be more than a reasonable amount of force to gain control of § 87(2)(b) arm. § 87(2)(b) does not make any statements or noises that indicate his wrist has just been fractured. PO Marrero then moves close to § 87(2)(b) back, blocking his BWC lens.

The investigation also obtained PO Mock’s first BWC **(07, 36 Board Review)**. At 04:08, as § 87(2)(b) moves towards the front door and § 87(2)(b) PO Marrero loops his arms underneath § 87(2)(b) armpits so that his chest is flush with § 87(2)(b) back, while PO Mock holds § 87(2)(b) left elbow and wrist with both hands. Neither of § 87(2)(b) arms are handcuffed. The officers and § 87(2)(b) spin clockwise, past the couch and toward a bed. The pace slows as PO Marrero walks toward the bed, while still holding § 87(2)(b) underneath his armpits, and § 87(2)(b) goes chest first into to the mattress of the bed. As PO Marrero tells him to lie down, § 87(2)(b) gets onto his knees and crawls upward toward the head of the bed. He then leans over so that his head and upper torso are bent over the bedframe, toward the floor. A pile of items is partially visible on the ground near the head of the bed, including clothing and a clear hard plastic item. PO Marrero’s feet are on the floor with his torso bent over and his chest still pressed against § 87(2)(b) back. At 04:27, PO Mock, who is standing close to the foot of the bed, states, “Sir, you’re going to get tased.” PO Marrero is still bent over § 87(2)(b) back as they rock back and forth; neither of their hands are visible. At 04:37, § 87(2)(b) left upper arm is draped over the metal edge of the bedframe while PO Marrero is in the same position. While reaching for § 87(2)(b) left arm, PO Mock states, “Sir, last warning. Sir, you’re going to get tased.” PO Mock successfully moves § 87(2)(b) left arm onto the bed and § 87(2)(b) quickly moves his hand between his torso and the mattress. PO Mock states, “Sir, you’re going to get tased. Last opportunity.” He takes out his taser, it makes a beep, and he states, “Sir, you see that?” PO Marrero states, “Sir, I’m telling you for the last fucking time.” At 05:16, § 87(2)(b) waist is bent over the headboard and his torso is facing toward the floor. PO Mock states, “Sir, you’re going to get tased,” and moves the taser toward § 87(2)(b) upper thigh. A taser noise is audible, after which § 87(2)(b) yells and his left arm moves upward toward his left buttock. PO Mock grabs § 87(2)(b) left wrist and elbow while PO Marrero grabs his upper arm. § 87(2)(b) left arm is bent at the elbow with his hand near his waist. PO Mock states, “I dropped my cuffs. You got cuffs?” At 05:27, § 87(2)(b) left hand moves upward out of PO Mock’s grasp and hits PO Mock’s BWC, which becomes dislodged and falls, causing the screen to go dark. At no point prior to the BWC becoming dislodged does either officer push their knee into § 87(2)(b) back or take any action that would likely restrict his breathing, nor does § 87(2)(b) make any statements or noises indicating he is having trouble breathing. At 05:33, while the

BWC is capturing only audio, § 87(2)(b) states, “Why are you still resisting?” At 5:37, a second taser noise can be heard. At 06:13, § 87(2)(b) picks up the BWC and places it upward, facing the ceiling. Both officers continue to yell at § 87(2)(b) to provide his hands. At 07:25, § 87(2)(b) yells, “I got you, I got you. I got you. You’re choking me. Let me put my hands behind my back. I promise you. Control my hand. Control my hand. Tell your partner to control my hand.” The BWC is still dislodged and facing the ceiling and so it is not possible to see what is occurring as § 87(2)(b) says this. At 07:51, sirens and the clank of handcuffs are audible.

In § 87(2)(b) cell phone video, at the immediate start, § 87(2)(b) is seated on the sofa with his legs out, bent at the knee, and his left buttock slid to the edge of the couch cushion **(28, 39 Board Review)**. PO Mock’s legs are on either side of § 87(2)(b) legs and his inner thighs are inches above, but separated from, § 87(2)(b) thighs. PO Marrero stands immediately to PO Mock’s right with his left knee pressed into § 87(2)(b) right thigh and his left arm looped around PO Mock’s shoulder. The officers bob slightly, moving further away from § 87(2)(b) torso as § 87(2)(b) states, “Okay, okay, let me get off. Get off me please.” At 00:05, § 87(2)(b) torso is visible and he is facing forward. Neither officer has his knee anywhere in the proximity of § 87(2)(b) back. § 87(2)(b) states, “I’m tired. Get off me.” An officer (it is unclear which) states, “Put your hands behind your back now.” § 87(2)(b) states, “I can’t do that.” At 00:13, § 87(2)(b) states, “Let me sit on the floor, get some water, please. I’m about to pass out.” At 00:20, § 87(2)(b) states, “I’m putting my hands behind my back, sir, look. Trust me one more time.” At no point in the video does either officer sit on § 87(2)(b) or place his knee anywhere above § 87(2)(b) waist. The video ends 26 seconds before the moment in PO Mock’s first BWC; at which time, § 87(2)(b) states, “You’re choking me.”

In Det. Gonzalez’s BWC, at 00:58, Det. Gonzalez and several other officers arrive at the apartment, where § 87(2)(b) is lying on the floor handcuffed in a fetal position and yelling for water **(15, 40 Board Review)**. No officer tases § 87(2)(b) sits on him, or presses a knee into his back.

None of the BWC footage from the back-up officers who entered the apartment depicts any taser being used or contains the noise of any taser being deployed.

PO Marrero testified that when § 87(2)(b) lunged forward toward § 87(2)(b) while flailing his arms, he was worried that § 87(2)(b) may try to escape or harm § 87(2)(b) **(34 Board Review)**. PO Marrero pulled § 87(2)(b) right hand during the struggle, but only with enough force to get it behind his back. He did not believe that this pull caused § 87(2)(b) wrist to fracture. § 87(2)(b) did not complain of any injuries to his wrist. Later that day, in the cell area of the stationhouse, § 87(2)(b) shook PO Marrero’s hand with his right hand and did not state that his wrist hurt. PO Marrero held § 87(2)(b) torso while he and PO Mock guided him onto the bed, chest-down, so that he would have less room to move and be easier to handcuff. PO Marrero did not recall § 87(2)(b) exhibiting any signs of having trouble breathing at that time. After commanding § 87(2)(b) to provide his arms numerous times, PO Marrero used the phrase “for the last fucking time” while issuing this command in hopes that more aggressive speech might cause him to comply since speaking politely was not working. PO Mock tasered § 87(2)(b) in drive-stun mode, but PO Marrero did not know if PO Mock’s drive stuns contacted skin because § 87(2)(b) continued not to provide his hands. When providing his hands, § 87(2)(b) stated that he was out of breath and told the officers to handcuff him. PO Marrero believed that § 87(2)(b) was out of breath due to the duration of the struggle; he and PO Mock were out of breath, as well.

PO Marrero was presented with PO Mock’s first BWC from 07:20 to 07:30. PO Marrero acknowledged that § 87(2)(b) stated, “You’re choking me,” **(34 Board Review)**. This occurred during the struggle on the couch, but PO Marrero did not recall how the officers or § 87(2)(b) were positioned; neither he nor PO Mock were doing anything to restrict § 87(2)(b) breathing.

PO Mock testified that as soon as he and PO Marrero asked § 87(2)(b) to stand up and turn around, he began to actively resist by placing his hands in front of his body and tensing them up **(35 Board Review)**. PO Mock did not recall § 87(2)(b) indicating that he was having difficulty breathing while on the bed chest down. § 87(2)(b) grabbed the edge of the bed frame with his hand

and pulled himself upward, which PO Mock believed was an attempt to escape the officers' grasp. § 87(2)(b) then reached over the bedframe toward the floor close to where PO Mock saw a pair of scissors. After several verbal warnings, PO Mock used his taser against § 87(2)(b) in drive-stun mode at his lower back or buttock to gain compliance. He did so because § 87(2)(b) had a very strong grip on the top edge of the bed and PO Mock was worried that he would grab the scissors and use them as a weapon. PO Mock also felt that he and PO Marrero, the only officers on scene at the time, were losing the struggle so tasing was the best option to gain compliance. After the first taser deployment, § 87(2)(b) hand shot back to the spot where he was tased but before PO Mock could grab it, his hand quickly moved back and gripped the top of the bed again. This indicated that the drive stun made skin contact but did not work for the full five seconds. Because the first drive stun briefly worked and because § 87(2)(b) continued to squirm and keep his hands out of the officers' grasp, PO Mock drive stunned him a second time on his lower back while preparing to quickly grab his hand if he moved it back down again. The second drive stun did not incapacitate § 87(2)(b) and his hand did not move back down. PO Mock and PO Marrero pulled § 87(2)(b) off the bed and moved him toward the couch to get him away from the scissors. While on the couch, § 87(2)(b) stated that he could not breathe and gave up. Neither officer touched § 87(2)(b) torso or back or did anything that could have restricted his breathing. § 87(2)(b) still did not provide his hands and the struggle continued. When PO Mock heard the sirens of additional units arriving, § 87(2)(b) slid downward onto the floor. While lying face down on the floor, § 87(2)(b) provided his hands to PO Mock, who handcuffed him. § 87(2)(b) did not say that his right hand hurt him and there was no indication that it was injured.

When PO Mock was presented with his first BWC video from 07:18 to 07:31, he acknowledged that § 87(2)(b) could be heard stating, "You're choking me," **(35 Board Review)**. PO Mock believed that § 87(2)(b) said this while moving between the bed and the couch. Neither he nor PO Marrero were choking § 87(2)(b) or doing anything that could have restricted § 87(2)(b) breathing. Numerous times during the struggle, § 87(2)(b) stated that he could not breathe. Both PO Mock and PO Marrero were also winded at the time since the struggle was vigorous. PO Mock believed that § 87(2)(b) had difficulty breathing for the same reason.

§ 87(2)(b) stated that after being tased, § 87(2)(b) continued to move his arms away **(33 Board Review)**. The struggle then moved back to the couch, where the officers stood above § 87(2)(b) who was facing them. The officers ultimately got § 87(2)(b) onto the floor but § 87(2)(b) did not see how they did so because by that time additional officers arrived and § 87(2)(b) view was blocked. § 87(2)(b) never saw an officer push a knee into or sit on § 87(2)(b) back. § 87(2)(b) was not injured after the incident.

According to Threat, Resistance, Injury Report § 87(2)(b), PO Mock and PO Marrero were attempting to handcuff § 87(2)(b) for striking § 87(2)(b) and causing lacerations to her chest **(41 Board Review)**. When § 87(2)(b) resisted, PO Mock and PO Marrero utilized a forcible takedown and wrestling and grappling techniques to defend themselves from "being further assaulted" and to handcuff § 87(2)(b). PO Mock drive stunned § 87(2)(b) with his taser on the lower and upper back, causing minor lacerations. PO Marrero sustained back and shoulder pain and PO Mock sustained neck pain from the interaction.

Medical Treatment of Prisoner Form § 87(2)(b) lists § 87(2)(b) injury as a "minor laceration from being drive stunned," **(42 Board Review)**.

The data sheet for Taser serial # § 87(2)(b) assigned to PO Mock shows that the trigger was depressed twice, for five seconds each time, at 11:23 A.M. and 11:24 A.M. **(43 Board Review)**. The data sheet for Taser serial # § 87(2)(b) assigned to PO Marrero shows that the trigger was not depressed during the incident **(44 Board Review)**.

§ 87(2)(g) BWC shows that PO Marrero did not push § 87(2)(b) to the floor beside the couch at the beginning of the struggle. Rather, it shows that PO Marrero held § 87(2)(b) from behind, walked him toward the bed, and then guided him downward onto the mattress. Likewise, the video shows that neither officer pushed their knee into § 87(2)(b) back or



did anything likely to restrict his breathing prior to the taser being deployed. It also shows that prior to the struggle moving back to the couch, § 87(2)(b) did not make any statements or noises that indicated he was having trouble breathing. The footage further shows that § 87(2)(b) was not tased a third time during the incident. § 87(2)(g)

§ 87(2)(g) therefore recommends that **Allegations E, G, H, and N** be closed as **unfounded**.

Patrol Guide Procedure 221-01 states that an officer's primary duty is to protect human life, including the lives of those being placed in custody (**45 Board Review**). Officers may use force "when it is reasonable to ensure the safety of a member of service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances." In situations where de-escalation techniques are not safe and/or appropriate, officers "will use only the reasonable force to gain control or custody of a subject."

Patrol Guide Procedure 221-02 defines active resistance as "physically evasive movements to defeat a member of the service's attempt at control, including bracing, tensing, pushing, or verbally signalling an intention to avoid or prevent being taken into or retained in custody," (**46 Board Review**).

Given that § 87(2)(b) was actively resisting being placed in custody, § 87(2)(g)

§ 87(2)(g) BWC footage shows PO Marrero pulling § 87(2)(b) arm § 87(2)(g) and does not depict § 87(2)(b) making any statements or sounds at that time that indicated his wrist had just been fractured. § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation F** be closed as **within NYPD guidelines**.

Patrol Guide Procedure 221-08 states that a taser "should only be used against persons who are actively resisting, exhibiting active aggression, or to prevent individuals from physically injuring themselves or other person(s) actually present," (**47 Board Review**). Active resisting is defined as "physically evasive movements" to prevent an officer's attempt to gain control and includes bracing, tensing, pushing, or verbally signaling an intention to prevent officers from taking them into custody. When feasible, officers are to "issue an appropriate verbal warning" to the subject before discharging the taser. Tasers should be aimed below the neck and when practical, should be discharged at an individual's back.

BWC footage shows that when PO Mock warns § 87(2)(b) that he will be tased if he does not provide his arms, § 87(2)(b) continued to actively resist. Additionally, it shows that just before the first use of the taser, after PO Mock successfully got § 87(2)(b) left arm onto the bed, § 87(2)(b) immediately placed his hand between his torso and the mattress, out of reach of the officers again. Finally, the footage shows that prior to deploying his taser, PO Mock issued four verbal warnings and called § 87(2)(b) attention to the beeping noise of the taser, § 87(2)(g)

§ 87(2)(g) It is therefore recommended that **Allegation J** be closed as **within NYPD guidelines**.

BWC video also shows that after § 87(2)(b) was tased the first time, his left arm shot backward and PO Mock and PO Marrero briefly grabbed hold of it. However, before they could handcuff the arm, § 87(2)(b) pushed it upward, out of the officers' grasp. Although no footage captures the visuals of what happened next, PO Mock's BWC video contains clear audio of § 87(2)(b) stating, "Why are you still resisting?" indicating that § 87(2)(b) was still not providing his arms. § 87(2)(g)

§ 87(2)(g) recommends that **Allegation K** be closed as **within NYPD guidelines**.

Patrol Guide Procedure 200-02 requires that officers render “services with courtesy and civility,” (48 Board Review). *DAO-DCT Disciplinary Case No. 2017-17276* ruled that “language which would be inappropriate for the vast majority of police-citizen encounters may be excused when used as a means of verbal suasion intended to dissuade a suspect from active resistance to an arrest” (49 Board Review).

BWC footage shows that when PO Marrero stated, “Sir, I’m telling you for the last fucking time,” he did so while the intense physical struggle with § 87(2)(b) was ongoing. § 87(2)(g)

It is therefore recommended that **Allegation I** be closed as **within NYPD guidelines**.

According to Patrol Guide Procedure 221-02, officers are to “avoid actions which may result in chest compression, such as sitting, kneeling or standing on a subject’s chest or back, thereby reducing the subject’s ability to breathe,” (46 Board Review).

While BWC footage from officers responding as back-up shows that no officer sat on § 87(2)(b) back and restricted his breathing, BWC does capture audio of § 87(2)(b) stating, “You’re choking me,” approximately one minute and 15 seconds before the back-up officers arrived. Neither officer BWC video nor § 87(2)(b) cellphone video captures the events at the time § 87(2)(b) makes the statement. § 87(2)(b) did state that she did not see either PO Mock or PO Marrero sit on § 87(2)(b) back, but she also testified that she did not witness how § 87(2)(b) moved from the couch onto the floor, implying that she did not see the entirety of the interaction on the couch. § 87(2)(g)

it is recommended that **Allegations L and M** be closed as **officer unidentified**.

**Allegation (O) Discourtesy: On February 12, 2022, Police Officer Anthony Pala was discourteous to § 87(2)(b)**

**Allegation (P) Discourtesy: On February 12, 2022, Police Officer Anthony Pala spoke discourteously to § 87(2)(b)**

It is undisputed that on February 12, 2022, PO Pala arrived at § 87(2)(b) in Queens in response to PO Marrero and PO Mock’s radio messages requesting back-up. When he arrived, PO Pala was wearing four patches on the chest area of his uniform: a Devils Island-themed patch, a patch depicting a military-style firearm, a plague mask patch, and a patch that read “2020 Riots.”

At 15:39 in PO Woodard’s first BWC, the front of PO Pala’s uniform is fully visible and shows the four patches affixed to it (24, 50 Board Review). The center patch depicts a red devil’s head in the middle with a pair of handcuffs and a firearm to the left, a grim reaper holding a scythe and a blood-filled syringe to right, and a police vehicle above. Around the perimeter of the patch is text that reads, “Devils Island NYPD 103 PCT Jamaica New York.” To the right of the Devils Island patch is another patch, the view of which is blurry. The patch depicts a plague mask wearing a helmet and reads “Police City of New York 2020 Riots” around the perimeter.

BWC footage does not show a clear image of the “2020 Riots” patch.

At 02:50 in PO Pala’s second BWC, § 87(2)(b) is handcuffed and lying with his face against the hood of a police vehicle (10, 51 Board Review). PO Woodard stands to § 87(2)(b) left and

PO Pala stands behind § 87(2)(b). At 02:56, § 87(2)(b) stands up and turns his face to his right. His lips are agape, he does not face PO Pala, and his head remains approximately an arm's length away from PO Pala's head. PO Pala and PO Woodard hold § 87(2)(b) sweatshirt, preventing him from moving further backward, and then guide him back down to the vehicle while PO Pala states, "Don't fucking face me again."

PO Pala testified that he was wearing the four patches on his uniform, two of which are described above, when he arrived at the apartment (**52 Board Review**). When asked for the policing purpose behind wearing the patches, PO Pala stated that he wore the patches for the same reason that people stick stickers on their books and that there was "no harm in it." He identified the Devils Island patch on his uniform as a symbol that represented the 103<sup>rd</sup> Precinct, which is called Devils Island. He identified Devils Island as an old prison and stated that he was unsure why it was connected to the 103<sup>rd</sup> Precinct. The "2020 Riots" patch represented incidents to which he had responded as a police officer. After viewing PO Woodard's BWC from 07:19 to 07:40, PO Pala testified that he told § 87(2)(b) "Don't fucking face me again," because too many perpetrators had previously spat in his face and headbutted him. He noted that "maybe" he should not have used the word "fucking," but that his adrenaline was high due to the fact that § 87(2)(b) had resisted putting on shoes and walking downstairs earlier in the incident.

Devils Island was a French penal colony located off the coast of French Guiana (**53-54 Board Review**). The location was used as a maximum-security prison and was notorious for its harsh treatment of prisoners, who suffered high mortality rates.

According to Patrol Guide Procedure 200-02, the mission of the NYPD is to work in partnership with the community to enforce the law, preserve peace, protect the people, reduce fear, and maintain order (**48 Board Review**). Among the NYPD's core values is to maintain a higher standard of integrity than is generally expected of others. It is also their mission to value human life, respect the dignity of each individual, and render their services with courtesy and civility.

The patches on PO Pala's uniform that associate the community he is serving with a penal colony known for harsh treatment of prisoners, as well as images depicting imprisonment, devils, items dripping with blood and a reference to the 2020 protests § 87(2)(g)

It is therefore recommended that **Allegation O** be closed as **substantiated**.

BWC shows that when PO Pala told § 87(2)(b) "Don't fucking face me again," the situation was calm and the only action that § 87(2)(b) took beforehand was to stand up and turn to his right.

§ 87(2)(g)

It is therefore recommended that **Allegation P** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)

### Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party **(57 Board Review)**.
- PO Marrero has been a member of service for four years and this is the first CCRB complaint to which he has been a subject.
- PO Mock has been a member of service for two years and has been a subject in two additional CCRB complaints and three additional allegations, none of which have been substantiated. A total of three taser allegations have been pleaded against PO Mock, two in this case, and one in 202206310, which was closed pending litigation.
- PO Pala has been a member of service for five years and has been a subject in six additional cases and 14 additional allegations, none of which have been substantiated. § 87(2)(g)

### Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- According to the New York City Office of the Comptroller, as of March 30, 2023, no Notice of Claim was filed in regards to this incident **(63 Board Review)**.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 9

|               |                     |                        |                  |
|---------------|---------------------|------------------------|------------------|
| Investigator: | <u>Rachel Adler</u> | <u>SI Rachel Adler</u> | <u>4/20/2023</u> |
|               | Signature           | Print Title & Name     | Date             |

|               |                         |                            |                   |
|---------------|-------------------------|----------------------------|-------------------|
| Squad Leader: | <u>Wassim Abedrabbo</u> | <u>IM Wassim Abedrabbo</u> | <u>04/20/2023</u> |
|               | Signature               | Print Title & Name         | Date              |

|           |           |                    |         |
|-----------|-----------|--------------------|---------|
| Reviewer: | <u></u>   | <u></u>            | <u></u> |
|           | Signature | Print Title & Name | Date    |